



U.S. Department
of Transportation

Research and
Special Programs
Administration

MAY 21 1999

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8967
(FOURTH REVISION)

EXPIRATION DATE: December 31, 2000

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Alliant Techsystems, Inc.
Hopkins, MN

(See Appendix A for additional list of grantees)

2. PURPOSE AND LIMITATION:

- a. This exemption authorizes the transportation in commerce of a solid propellant explosive identified as MK 43 Grains and MK 90 Grains in non-DOT specification containers. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.
- b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.

4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.62(c), Packaging Instructions 114(b)

5. BASIS: This exemption is based on the application of Alliant Techsystems, Inc. dated November 4, 1998, submitted in accordance with § 107.109 and a supplemental letter dated April 26, 1999.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Powder, smokeless	1.3C	UN0161	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Inside container is a non-DOT specification fiberboard tube identified as MK 10 MOD 1 container and must be constructed in accordance with the specifications shown on drawing BUORD 135087 submitted with the original application. Each inside container may not contain more than 8.0 pounds net weight of the solid propellant explosive, MK 43 Grains or MK 90 Grains.

b. Outside container is a non-DOT specification palletized metal cage identified as MK 2 MOD 0 pallet crate and must be constructed in accordance with the specifications shown on drawings BUORD 1350832, -33, -34, -35, -36, -37, -38, -39, -40, and -41 submitted with the application. No more than 220 inside containers may be packed in an outside container. The total net weight of the solid propellant explosive in each outside container may not exceed 1425 pounds. The inside containers must be packed in such a manner to restrict free movement in the metal cage.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

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11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

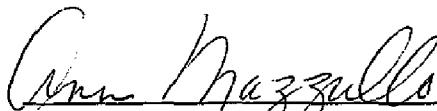
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

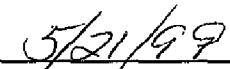
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving fire, explosion or loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety


(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

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The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, SW, Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

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